Privacy policy

The protection of your personal data is important to us. With this data privacy policy, we aim to explain to you in more detail what personal data we collect when you use komoot.com and the komoot apps (hereinafter collectively referred to as “Services”) and for what purpose the data is used.

Contact information and data controller

The data controller is:
komoot GmbH
Kienberger Allee 4
D-12529 Schönefeld
Germany
If you have any questions or suggestions regarding data protection, please feel free to email us at feedback@komoot.de.
You can contact our privacy protection officer at datenschutzbeauftragter@komoot.de.

Subject matter of data protection

The subject of data protection is personal data, i.e. all information relating to an identified or identifiable natural person.

Automated data collection

When accessing our Services, your device automatically transmits data for technical reasons. The following data is stored separately from other data that you may transmit to us:

- Browser type and version
- Operating system
- Referrer URL
- URL of the loaded website
- The latency of the network connection
- Date and time of the server request
- Your IP address
- Identifiers collected by mobile apps:
  - Advertising Identifier (IDFA), if consented
  - Device IDs (e.g., IMEI, Android ID, or similar identifiers)
    We save this data for the following purposes:
- Allowing users to use the app. This is the primary purpose for collecting the above data.
- Ensuring the security of our IT systems, for example, to prevent specific attacks on our systems and to identify attack patterns.
- Ensuring the proper operation of our IT systems, for example if errors occur that we can only remedy by storing the IP address.
- To enable criminal prosecution, security or legal prosecution if there are specific indications of criminal offenses.

Registration data

To be able to use all functions of komoot, you have to register. For this you have to provide the following mandatory information:

- Email address
- Username
- Password
  Alternatively, you can log into komoot using your Facebook or Apple account. Doing so means we will receive the following information from the Meta/Apple corporation:
- Name
- Email address
- Profile picture (Facebook only)
- An authorisation token
  When you sign up via Facebook, all of your Facebook friends that are also on komoot can find you via the search function, unless your Facebook settings determine otherwise. After you sign up, you will receive a registration email in order to activate your komoot account.
  Your registration data is necessary in order for komoot to create a user account for you. This is also used to activate and manage your account and to allow you to use all the features of the Service. In this way, you opt-in to a (free) user contract which allows us to store the data (according to Art. 6 Para. 1 lit. b GDPR).
  In order to conclude the contract, you have to provide us with this data. However, you are neither contractually nor legally obliged to conclude the contract and thus to provide the data.
  In addition, you can provide further voluntary information as part of the registration, for example you can save a profile photo, tell others about yourself or indicate your favorite sport. This information is voluntary and not necessary to register you. Please note, however, that this information may be visible to other komoot users according to your settings. You can determine whether you want to be found by other users. We collect this data in order to be able to provide you with the corresponding functions of our Services, Art. 6 Para. 1 lit. b GDPR.
  When you log in to komoot, we also save your IP address for a short period of time in order to be able to detect and prevent possible attacks and mass misuse of logins to komoot (e.g. so-called brute force attacks) by blocking these IP addresses temporarily if necessary. The processing takes place in order to ensure the security of the processing according to Art. 32 GDPR and based on our legitimate interest in protecting us from misuse of our service (Art. 6 Para. 1 lit.f GDPR). Data is stored for a maximum of 90 days. It is subsequently anonymised.

Community functions

At komoot, you can interact with other users, for example by publishing personal Highlights, commenting, giving other tips or discussing with other users. You can also follow other users if you want to keep up to date with new posts from them.
The use of these functions is of course voluntary. If you use it, we collect the data you have entered in order to make it accessible to other komoot users in accordance with your settings and the function you use.
If you want, we can also inform you by e-mail or push notification if there is any news about your published posts. You'll also receive an email and a notification if you're set as a safety contact by another user. You'll

framework of your user contract (Art. 6 Para. 1 lit. b GDPR).

Live Tracking

If you use Live Tracking, a feature of komoot Premium, your location data will be sent to our API at regular intervals during the Tour recording. You can optionally share location data by sending a publicly accessible link or by designating other komoot users as safety contacts. Your safety contacts will receive an email and a message in their profile as soon as you start a new Tour and Live Tracking is active. Your location data will be deleted after 28 days.
Your data is processed for the aforementioned purposes in order to be able to provide you with the functions as part of your user contract (Art. 6 Para. 1 lit. b GDPR).

Generation of aggregated heatmaps

To improve our services and help our community discover popular outdoor routes, we may use location data collected during your use of komoot—such as GPS tracks from completed Tours—for the purpose of generating aggregated, anonymized visualizations (e.g., heatmaps). These heatmaps show areas that are frequently used by komoot users, but they do not include any information that could identify you personally.

To ensure your privacy, the data used for this purpose is fully anonymized and aggregated before any visualization is generated.

The legal basis for this processing is our legitimate interest (Art. 6 Para. 1 lit. f GDPR) in improving the quality and usefulness of our services for the komoot community, while protecting your fundamental rights and freedoms.

Shop

If you purchase a Premium subscription or a gift voucher in our shop, we integrate payment service providers to process payments. When paying by credit card, we use the payment service provider Stripe (Stripe Payments Europe, Ltd., C/O A & L Goodbody, Ifsc, North Wall Quay, Dublin, D01 H104, Ireland \- "Stripe"). You can find Stripe's privacy policy at: https://stripe.com/en-de/privacy
You also have the option of paying via PayPal. In this case, your payment will be processed by PayPal (Europe) S.à r.l. et Cie (“PayPal”), S.C.A., 22-24 Boulevard Royal, L-2449 Luxembourg. You can find PayPal's privacy policy at: https://www.paypal.com/en/webapps/mpp/ua/privacy-full
We transmit payment information to these payment service providers to process the payments for the respective services, Article 6 (1) (b) GDPR. The further processing of payment information by the payment service provider is the sole responsibility of the respective payment service provider. Please note the data protection declarations of the payment service providers. The respective payment service provider is solely responsible for processing your payment data. We have neither access nor influence over it.
We only receive information from the payment service providers that the payment has been properly processed. We process this information along with your name in order to complete the transaction you have made. If you have purchased a voucher from us, we will also process your e-mail address in order to send you the voucher code. The legal basis for processing is Art. 6 (1) (b) GDPR.
In order to be able to conclude the purchase contract, you must provide this data. However, you are neither contractually nor legally obliged to conclude the contract and thus to provide the data.

Requests

- Your e-mail address
- The time and date of your request
- The subject and content of your request
- All information included in any attachments you may have uploaded

To process your inquiries via our support center, we use the Zendesk customer service platform, a service provided by Zendesk Inc., 989 Market Street, San Francisco, CA 94103 ("Zendesk") (cf. Art. 4 No. 8 , 28 GDPR).

Your personal data will be processed in the USA. There is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Zendesk Inc. is a certified company in accordance with the Data Privacy Framework. USA.

Direct inquiries via our contact details

If you send us inquiries by e-mail or by other means (e.g. by post), your details will be processed to process the enquiry. This includes:

- Your name
- The time and date of your request and the other information you provide us with in your request

Depending on how you contact us or the contact details you have provided, we may also process:

- Your email address
- Your address

Purpose and legal basis of processing

The legal basis for the processing is our legitimate interest (Art. 6 Para. 1 lit. f GDPR) in rapid communication in order to conduct the exchange you are seeking and to be able to process your request properly. In the case of inquiries in connection with an existing or future contractual relationship with us, processing is carried out to initiate and implement the respective contractual relationship, Art. 6 (1) (b) GDPR. In addition, we have a legitimate interest in the efficient management of our customer relationships, Article 6 (1) (f) GDPR.

Storage data

We store inquiries about contracts or of potential legal relevance during the general limitation period, i.e. three years from the end of the year in which we received your requests. We store all other inquiries for a period of 24 months. Your requests will then be deleted unless we are legally obliged to keep them for a longer period of time.

The storage takes place on the basis of our legitimate interest, the proper documentation of our business operations and the protection of our legal positions (Art. 6 Para. 1 lit. f GDPR). In the case of inquiries about contracts, the storage takes place to initiate and implement the respective contractual relationship (Art. 6 Para. 1 lit. b GDPR) and, if necessary, to fulfill legal obligations (Art. 6 Para.1 lit. c GDPR).

Security vulnerability reward program

If you have discovered a vulnerability on our Services and report it to us, we will process your contact details as well as other information you have provided in order to receive and process your report and, if necessary, to ask you any questions. If your report is included in our bounty reward program and you qualify for a reward, we also need additional information from you in order to pay you the corresponding

The legal basis for the processing of your personal data is Article 6 (1) (f) GDPR. We have a legitimate interest in receiving and processing your report to ensure the security and functionality of our Services.
We store reports of potentially legal relevance during the general limitation period, i.e. three years from the end of the year in which we received your report. We store all other reports for a period of 24 months. Your report will then be deleted unless we are legally obliged to keep it for a longer period of time.
The storage takes place on the basis of our legitimate interest, the proper documentation of our business operations and the safeguarding of our legal positions (Art. 6 Para. 1 lit. f GDPR) and, if necessary, to fulfill legal obligations (Art. 6 Para.1 lit. c GDPR).

Commercial communications

If you register with us, we will inform you about news about our services on the komoot platform about once a month.
In this case, the collection and processing of your personal data takes place due to our legitimate interest in promoting similar services to your user account (Art. 6 Para. 1 lit. f GDPR, § 7 Para. 3 UWG).
You can object to this at any time \- even when registering \- by deactivating the corresponding checkbox or by clicking on the link to unsubscribe in the respective emails.
For this purpose, we also use customer.io, a service provided by Peaberry Software Inc., 9450 SW Gemini Dr, Suite 43920, Beaverton, Oregon 97008-7105, USA (“customer.io”). We use customer.io as a processor. Customer.io enables us to only send you news by email or push notification — depending on your selected preferences — that is relevant, of interest, and of use to you. So that we can tailor these notifications to your interests and provide you with the perfect personalized komoot experience — for example, to send you curated inspiration and ideas specific to you — we use data based on your use of komoot, your interactions with us, and the information saved in your user account. This includes:

- Data that you actively provide us with, e.g.:
  - User and display name
  - Email address
  - Notification settings (push notification, email)
  - Favorite sport
- Data that we obtain from your interaction within komoot, e.g.:
  - Device information
  - Information about your completed tours (finish time)
  - Usage information (start time for a session)
  - Community information (how many followers you have, and how many people you are following)
    Customer.io also enables us to identify which of our communications are effective and which are not, e.g. whether our communication prompts you to save one of our suggested tours or explore it. We can then use this information to improve our notifications to you.
    The usage takes place on the basis of our legitimate interest in being able to send you only news that is also relevant and of interest to you, in order to improve your user experience with our product, and so that you can use komoot more effectively to plan tours and explorations, Art. 6 Para. 1 lit. f GDPR.

ReCAPTCHA

prevent the automatic creation of user accounts and thus spam, fraud and other abuse in our community. If you call up our registration and login form, reCAPTCHA will collect device and — if applicable — personal data from you in order to be able to recognize whether you are a human user or a spam bot. This data includes information about your surfing behavior, login data, information about your browser and your IP address. In addition, reCAPTCHA uses cookies.
Your personal data will be processed in the USA. There is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Google Cloud EMEA Limited is a certified company in accordance with the Data Privacy Framework. Please note that there is currently no adequacy decision by the EU Commission for the USA. Therefore, we have concluded the standard contractual clauses approved by the EU Commission with Google in accordance with Article 46 (2) (c) GDPR.
For more information, see Google's Privacy privacy policy.
We use reCaptcha based on our legitimate interest in protecting ourselves from spam, fraud against us and our users and other misuse through automatically created accounts (Art. 6 Para. 1 lit. f GDPR).

Cookies

What are cookies and tracking technologies?

When we use the word "cookies" in this privacy policy, we mean any tracking technology that stores or accesses information on the user's device, including any SDK, tracking pixel, HTML5 local storage, local shared object, and fingerprinting technique.

Cookies are usually classified:
(A) by purpose (Technical cookies, Analytics cookies, Profiling cookies);
(B) by publisher (First-party cookies, Third-party cookies); and
(C) by duration (Session cookies, Permanent cookies).

This classification is important because different legal requirements apply based on how the cookie is classified.

Below you will find the types of cookies and tracking technologies as classified with some practical examples.

A. By purpose

Technical cookies

We set cookies which are absolutely necessary for the operation and functionality of the website and the associated services without your consent. This category includes cookies that ensure that the website is technically accessible and usable. In addition, these cookies ensure essential and basic functionalities of our website and the associated services. Specifically, we use cookies that are absolutely necessary for the following functions:

- Cookies, which are required to save certain technical data during your visit to our website and the use of the associated services.
- Cookies that determine whether you have logged in or are still logged in. In addition, we use cookies that save your chosen language and your preferred units (miles or meters).

storing your chosen settings and the cookie settings you have made remain stored until the end of the browser session.
If personal data from these cookies are processed, the processing is carried out to ensure the following:

- That our website and the functions provided can be used by you. This is also our legitimate interest, Art. 6 Para. 1 lit. f GDPR
- That your cookie selection, in particular your consent or non-disclosure to the use of cookies, is stored correctly, Art. 6 Para. 1 lit. c GDPR.

Analytics cookies

Additionally, we use cookies to analyze and evaluate your usage behavior. If we ask for your consent for the use of these cookies, the legal basis for such processing is consent in the sense of Art. 6 Para. 1 lit. a GDPR. Otherwise, we base the processing of these cookies on our legitimate interest in improving the quality of our products and services pursuant to Art. 6 Para. 1 lit. f GDPR.
These cookies are used to measure online traffic and analyze behavior. They collect information about how you interact with our website, which pages you have visited and which features of our website you have used. Your usage behavior can be traced using a user ID. This enables us to better understand the use of our Services and optimize them accordingly.

If we use cookies on the basis of your consent, you can revoke your consent at any time via the "Privacy Settings" link. Alternatively, you can change your settings at any time. You can find the link in the footer of the website. The revocation of the consent does not affect the lawfulness of the processing carried out on the basis of your consent until the revocation.
These cookies remain stored on your end device for up to two years, unless you withdraw your consent before this period has expired.

Profiling cookies

Profiling cookies may be used to trace specific actions or recurring behavioral patterns in the use of the offered functionalities back to specific, identified or identifiable individuals for the purpose of grouping the different profiles within homogeneous, multi-sized clusters. This is aimed in turn to enable a company to provide increasingly customized services beyond what is strictly necessary for the delivery of the service and also send targeted advertising messages in line with the preferences expressed by the user during their web-browsing activities.

In other words, profiling cookies may be used to convey behavioral advertising, measure the effectiveness of ads, or to customize the services offered in line with the user’s monitored behavior.

For example, profiling cookies can be used to create user profiles and offer content in line with the user’s interests, or to send targeted ads or messages.

Profiling cookies include the performance, marketing and social media cookies you might find mentioned while browsing the Services.

Profiling cookies need your explicit consent.

B. By publisher

First-party cookies

Third-party cookies

Third-party cookies are set by external providers other than those of the website that the user is browsing. In other words, the publisher of the website installs the cookies indirectly, using third-party publishers and processes the information thereby acquired.

For the purposes of this privacy policy, third party cookies include any tracker which, although directly published by us, is provided by third parties which receive or otherwise process for their own purposes the information acquired through these cookies when you use the Services. For further information, please refer to the privacy policy of such third party as indicated in the cookie table below.

The data collected by these third parties is governed by their own specific privacy policies, terms and conditions, or cookie policies to which we have no control over.

When our Services hosts third-party non-anonymized analytics cookies and/or profiling cookies, you will be asked to consent to such third-party cookies when landing on our websites for the first time, via a specific cookie banner.

You can manage and delete these third-party cookies at any time by accessing the privacy policies of the third parties as indicated in the following section ("Types of cookies used by the Website”).

C. By duration

Session cookies

Session cookies expire when the user's browsing session expires.

Permanent cookies

Permanent cookies last longer than a single browsing session.

Types of cookies used by the website and web app

Komoot's website and web app install the following types of cookies:

Technical Cookies:

- **komoot SDK (technical)** - First party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It is essential for the app to function correctly.
- **komoot SDK Legacy (technical)** - First party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It is essential for the app to function correctly.
- **Datadog** - Third party
  - Retention period: Defined by the Third Party
  - Description: Datadog allows us to keep track of issues and bugs within our app.
  - Privacy Policy
- **Facebook SDK** - Third party
  - Retention period: Defined by the Third Party

- Privacy Policy

Analytics Cookies:

- **komoot SDK (analytics)** - First party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It allows us to produce aggregated statistics.
- **komoot SDK Legacy (analytics)** - First party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It allows us to produce aggregated statistics.
- **Google Analytics** - Third party
  - Retention period: Defined by third party
  - Description: Google Analytics can help us to improve app's traffic and performance.
  - Privacy Policy
- **HotJar** - Third party
  - Retention period: Defined by third party
  - Description: We use HotJar to improve our website by observing browsing behavior.
  - Privacy Policy

Cookie settings

You can also disable (in whole or in part) technical cookies through the specific functions of your browser. Please note, however, that if you don't allow technical cookies, you may not be able to use the Services, view its contents and take advantage of its services. Inhibiting technical cookies may result in some features of the Services not being available or not working properly and you may be required to modify or manually enter certain information or preferences each time you use the Services.

The choices you make with respect to cookies will be recorded in a cookie. However, in some circumstances this cookie may not work properly: in such cases, we recommend that you delete the cookies you do not like and inhibit their use through the features of your browser.

Your cookie preferences will need to be reset if you use different devices or browsers to access the Services.

You can find information on how to manage cookie settings on certain browsers via the following links:

- Chrome
- [Firefox] (https://support.mozilla.org/en-US/kb/cookies-information-websites-store-on-your-computer?redirectlocale=en-US&redirectslug=Cookies)
- Internet Explorer
- Safari

For more information about how to limit the use of third-party cookies installed in your browser, please visit www.youronlinechoices.com. Once arrived on the website, by accessing the "Your ad choices" section, you will be able to view the list of third parties that install cookies on your browser and manage your consent

Types of cookies used by the mobile apps

Komoot's mobile app installs the following types of cookies:

Technical Cookies:

- **komoot SDK** - First-party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It's necessary for the app to function correctly.
- **komoot SDK Legacy** - First-party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It's necessary for the app to function correctly.
- **Firebase** - Third-party
  - Retention period: Defined by the third party
  - Description: A tool provided by Google that's necessary for the app to work properly. When analytics features are enabled, it can help us to improve app traffic and performance.
  - Privacy Policy
- **Facebook SDK** - Third-party
  - Retention period: Defined by the Third Party
  - Description: Thanks to this SDK developed by Meta we can provide you with a secure, fast, and easy way to log in into our app using Facebook. If you like, you'll also be able to share your workouts on Facebook in an easy way.
  - Privacy Policy

Analytics Cookies:

- **komoot SDK** - First-party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It allows us to produce aggregated statistics.
- **komoot SDK Legacy** - First-party
  - Retention period: 3 years
  - Description: Our internal software development kit (SDK). It allows us to produce aggregated statistics.
- **Firebase** - Third-party
  - Retention period: Defined by the third party
  - Description: A tool provided by Google that can help us to improve app traffic and performance when analytics features are enabled.
  - Privacy Policy

Profiling Cookies:

- **Firebase** - Third-party
  - Retention period: 3 years
  - Description: Firebase is a tool provided by Google which is essential for the app to work properly. When profiling features are enabled, it can help us to measure the effectiveness of our ads.

- Retention period: Defined by the third party
- Description: Adjust is a mobile attribution tool. It helps us to measure the effectiveness of our ads.
- Privacy Policy

- **Product personalization** - First-party
  - Retention period: 3 years
  - Description: Our internal profiling software development kit (SDK). It allows us to customize your user experience.

Tracking technologies settings

You can turn on or turn off—in whole or in part—profiling and analytics tracking technologies at any time through the app's privacy settings.
When you withdraw consent, your data will no longer be collected through those trackers. However, we'll continue processing the data collected before the withdrawal.

Social Plugins

If you want, you can use social plugins to share the content of our website on social networks. We have provided a two-click solution: If you want to share content via such a plugin, you must first click on an icon of the corresponding social network. This click then unlocks the plug-in of the respective social network for the future.
Only then will various data be transmitted to the respective social network. This can include:

- Date and time of the visit to the website
- Browser used
- Operating system used
- URL of the website you previously visited ("referrer")
- URL of the website you are on
- Your IP address
  Processing your personal data as mentioned above for the purpose of integrating social plugins is done solely based on your consent in accordance with Art. 6 Para. 1 lit. a GDPR.
  You can withdraw your consent by adjusting settings here or by clicking "Privacy Settings" at the bottom of the page. Withdrawing your consent does not affect the lawfulness of the processing carried out on the basis of your consent up until the moment you withdrew it.
  If you are logged into the respective social network while visiting our site, the provider may recognize that you visited our site and assign the visit to your account. If you use the plugin functions (e.g. clicking the "Like" button, submitting a comment), this information will also be transmitted from your browser directly to the respective social network and saved there if necessary. The purpose and scope of the data collection and the further processing and use of the data by the networks can be found in the data protection information of the respective social network.

Location determination

When you use the Services, we collect your IP address to determine your approximate location, so that we can show you maps and routes in your vicinity. Only if you explicitly consent to share your precise location, we will use that data instead of your IP address.
Your approximate location is also used for analytics purposes to improve and optimize the user experience.

Integrated third-party content

We have also included third-party content on the Services. This content is loaded from the servers of the respective providers, so that your end device transmits certain technically necessary data to the third party provider. In particular, it is not excluded that these providers can take note of the IP address assigned to you. As far as personal data is processed, this is done on the basis of the data protection declarations of the respective third party providers. The inclusion of your data is processed to allow us to display corresponding content and to offer necessary functions, as well as allowing us to operate our website more efficiently as long as this doesn't infringe on your own legitimate interests (Art. 6 para. 1 lit. f GDPR). We include the following third-party content:

Google Maps

To activate Google Street View in our maps, we integrate Google Maps, a service for users in the EU from Google Ireland Limited, Gordon House, Barrow Street, Dublin 4, Ireland. For users outside of the EU, this service is provided by Google LLC, 1600 Amphitheater Pkwy Mountain View, California 94043, USA ("Google"). There is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Google LLC is a certified company in accordance with the Data Privacy Framework.
You can see their privacy policy here.

YouTube

We use YouTube videos. YouTube is a service of Google LLC, 1600 Amphitheater Pkwy Mountain View, California 94043, USA, for users from the EU of Google Ireland Limited, Gordon House, Barrow Street, Dublin 4, Ireland ("Google"). There is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Google LLC is a certified company in accordance with the Data Privacy Framework.
You can see their privacy policy here.

Vimeo

We integrate videos from Vimeo. Vimeo is a service of Vimeo Inc., Attention: Legal Department, 555 West 18th Street New York, New York 10011, USA. There is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Vimeo Inc. is a certified company in accordance with the Data Privacy Framework.
You can see their privacy policy here.

Webhoster

We operate our website on the servers of our web host Amazon Web Service EMEA Sarl, 38 avenue John F. Kennedy, L-1855, Luxembourg, which processes personal data on our behalf. Processing takes place only within the European Union.

Our social media presence

General information

have provided, including your username and your profile photo (if applicable). The relevant processing takes place regularly on the basis of our legitimate interest in making the corresponding functions available on our social media pages (Art. 6 Para. 1 lit. f GDPR) and, if necessary, on the basis of your consent to the operator of the respective network (Art . 6 (1) (a) GDPR) or your contractual relationship with the operator (Art. 6 (1) (b) GDPR). Please also note that this content will be published on our relevant social media pages according to your account settings and may be accessible by anyone worldwide.
Further data processing by us can be carried out in order to be able to receive and process inquiries or messages via our social media pages (Art. 6 Para. 1 lit. b GDPR).
Uploaded content can be stored for an unlimited period of time. If you would like us to remove content you have uploaded to our social media site, please send us an email with your request to the contact details given under point 1\.
In addition, the respective operators collect and process personal data from you under their own data protection responsibility when you visit our social media pages and/or interact with them or our contributions. This applies in particular if you are registered or logged in to the relevant social media network. Even if you are not logged into a social media network, the operators collect certain personal data when you visit the site, such as unique identifiers that are linked to your browser or your device. Please note that this data may be merged across different platforms and services if they are operated by the same operator. Further information can be found in the data protection notices of the respective operators, to which we refer below.
Specifically, we operate the following social media presences:

Facebook Fanpage

You can also find us on Facebook at https://www.facebook.com/komoot.
For users outside of the USA and Canada, Facebook is operated by Meta Platforms Ireland Limited, 4 Grand Canal Square, Grand Canal Harbour, Dublin 2, Ireland. For users in the USA and Canada, Meta Platforms Inc., 1601 Willow Road Menlo Park, CA 9402, USA, operates Facebook.
Even if you are not registered with Facebook and visit our Facebook fan page, Meta Platforms can collect pseudonymous usage data from you. You can find more information in the Meta Platforms data policy at https://de-de.facebook.com/about/privacy/ and at https://www.facebook.com/legal/terms/information_about_page_insights_data. In the data policy you will also find information about the setting options for your Facebook account.
Meta Platforms may share your data within the Meta group of companies and with other third parties. This can lead to a transfer of personal data to the USA and other third countries for which there is no adequacy decision by the EU Commission. For data transfer to the USA, there is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR for the EU-U.S. Data Privacy Framework, which serves as the basis for data transfer to certified companies and organizations in the USA. Otherwise, Facebook Ireland will use the standard contractual clauses approved by the EU Commission in accordance with Article 46(2)(c) GDPR. You can also refer to the Meta Platforms Data Policy for more information.
In addition, together with Meta Platforms Ireland Limited, we are responsible for the processing of so-called insights data when you visit our Facebook fan page. With the help of this insight data, Meta Platforms Ireland Limited analyzes the behavior on our Facebook fan page and makes this data available to us in an anonymous form. To this end, we have entered into a joint data controllership agreement with Meta Platforms Ireland Limited, which you can view here. Among other things, Meta Platforms Ireland Limited undertakes the primary responsibility under the GDPR for the processing of Insights data and to

If you visit or like our Facebook page as a registered Facebook user, Meta Platforms Ireland Limited collects personal data from you. If you are not registered with Facebook and visit the Facebook page, Meta Platforms can collect pseudonymous usage data from you.
In detail, the following information is collected by Meta Platforms:

- Going to a page, post or video from a page
- Subscribing or unsubscribing to/from a page
- Liking or unliking a page or post
- Recommending a page in a post or comment
- Commenting, sharing, or reacting to a page post (including how you react)
- Hiding a page post or reporting it as spam
- Clicking a link that leads to the page from another page on Facebook or from a website outside of Facebook
- Hovering over a page's name or profile picture to see a preview of the page's contents
- Clicking the website, phone number, "Get Directions" button, or any other button on a page
- Information about whether you are logged in from a computer or mobile device while visiting or interacting with a site or its content.
  You can find more information in Meta's privacy policy. This includes further information on how Meta Platforms uses your data when you like our Facebook page. Meta's privacy policy: https://www.facebook.com/legal/terms/information_about_page_insights_data.

Provision of your data

You are neither legally nor contractually obliged to provide your personal data; furthermore, the provision of your personal data \- unless expressly mentioned in the aforementioned clauses \- is not necessary for the conclusion of a contract.
However, the provision of your personal data is necessary to a certain extent so that we can provide you with the functions on our Services. In particular, the provision of your data is necessary so in order to:

- Effectively make use of the community functions
- Process any requests/messages you submit to us
  If it is necessary to provide your data, we will point this out to you when you enter it by marking it as a mandatory field. Providing further data is voluntary. In the case of required data, failure to provide this data means that we cannot provide you with the relevant functions of our Services and cannot receive and process your inquiries or reports.
  In other cases, non-provision may mean that we do not provide the relevant functions or not to the usual extent, or that we are only able to process your inquiries and reports to a limited extent.

Disclosure of your data

Your data will only be passed on beyond what is described in this data protection declaration to the following extent:

- If it is necessary to clarify the illegal use of our Services or for legal prosecution, personal data will be forwarded to external consultants (e.g. lawyers), the law enforcement authorities and, if necessary, to injured third parties. However, this only happens if there are concrete indications of illegal or abusive

financial authorities.
In addition, your personal data may also be passed on if we are exposed to other claims by third parties, which may include information about your data.
This data is passed on on the basis of our legitimate interest in combating abuse, prosecuting criminal offenses and asserting, exercising or defending claims according to article 6 (1) (f) GDPR or on the basis of a legal obligation under article 6 Paragraph 1 lit. c GDPR.

- For the provision of the services, we rely on contractually linked third-party companies and external service providers, so-called processors (cf. Art. 4 No. 8, 28 GDPR). In such cases, personal data is passed on to these processors in order to enable them to carry out further processing. These processors process personal data on our behalf and are strictly bound by instructions.
  In addition to the processing parties already mentioned in this data protection declaration, we also use the following categories of processors:
- IT service providers
- Cloud service providers
- Software service providers
- As part of administrative processes and the organization of our operations, financial accounting and compliance with legal obligations (such as archiving), we disclose or transmit your data to financial administrations and consultants. These include tax consultants or auditors as well as other fee offices and payment service providers.
  This data is transmitted on the basis of our legitimate interest in maintaining our business activities, performing our tasks, asserting, exercising or defending claims (according to Art. 6 (1) lit. f du RGPD) or on the basis of a legal obligation (according to Art. 6 Paragraph 1 lit. c du RGPD).
- As part of the further development of our business, the structure of our company may change as a result of a change in legal form, establishment, acquisition or sale of subsidiaries, parts of companies or components. In such transactions, user information is shared with the part of the transferring company. Whenever personal data is passed on to third parties to the extent described above, we ensure that this is done in accordance with this data protection declaration and the relevant data protection laws.
  The transfer of personal data is justified by the fact that we have a legitimate interest in adapting our company's form to fit economic and legal circumstances in accordance with Art. 6 Para. 1 lit. f GDPR.

Transfer of data to third-party countries

We also process data in countries outside the European Economic Area ("EEA"), in so-called third-party countries, or transfer data to recipients in these third-party countries.
Insofar as your personal data is transferred beyond the cases described in this data protection declaration to recipients outside the European Economic Area, we transfer your data to third-party countries for which there is an adequacy decision by the EU Commission in accordance with Article 45 (1) GDPR.
If such an adequacy decision does not exist, we use the standard contractual clauses approved by the EU Commission in accordance with Article 46 (2) (c) GDPR when structuring the contractual relationships with recipients in third-party countries. You can request a corresponding copy of these standard contractual clauses as well as information on the additional measures that we have taken to ensure an appropriate level of data protection using the contact details given under point 1\.

Automated decision making and visitor profiling

Unless otherwise stated, we will delete or anonymize your personal data as soon as it is no longer required for the purposes for which we collected or used it in accordance with the preceding paragraphs. As a rule, we store your personal data for the duration of the usage or contractual relationship via the website plus a period of 30 days in which we keep backup copies after the deletion. We will also keep your data if we are obliged to do so for legal reasons or if the data is needed for criminal prosecution or to secure, assert or enforce legal claims.
If you delete your user account, your profile will be completely and permanently deleted. However, we will keep backup copies of your data for a period of 30 days before they are finally deleted, provided that this data is no longer required for legal reasons or for criminal prosecution or to secure, assert or enforce legal claims.
We also keep your data for the following reasons:
If we are obliged to do so for legal reasons, Article 6 (1) (c) GDPR. Insofar as we are legally obliged to store it, we store your data for the period prescribed by law. Legal requirements for storage can result in particular from the retention periods of the German Commercial Code (HGB) or the Tax Code (AO). The retention period according to these regulations is usually between 6 and 10 years from the end of the year in which the corresponding process was completed. If the data is required for a longer period of time for criminal prosecution or for the assertion, exercise or defense of legal claims. This is also our legitimate interest in accordance with Art. 6 Para. 1 lit. f GDPR. Storage then takes place until the relevant process has been completed plus the statutory limitation period.

Your rights as a data subject

With regard to the processing of your personal data, you have the rights described below. To assert your rights, you can submit an application by post or email to the address given in Section 1 above.

Right to information

You have the right to receive information from us at any time on request about the personal data processed by us in the scope and under the conditions of Art. 15 GDPR. To do this, you can submit an application by post or email to the above address.

Right to correct incorrect data

You have the right to request that we immediately correct your personal data if it is incorrect. For this, please contact the contact addresses given above.

Right to cancellation

You have the right, under the conditions described in Art. 17 GDPR and § 35 BDSG, to request that we delete your personal data. These requirements provide in particular a right to erasure if the personal data is no longer necessary for the purposes for which they were collected or otherwise processed, as well as in cases of unlawful processing, the existence of an objection or the obligation to erase them under EU law or the law of the Member State to which we are subject. For the period of data storage, see also the section “Deletion of your data” in this data protection declaration.

Right to restriction of processing

You have the right to demand that we restrict processing in accordance with Art. 18 GDPR.

Right to data portability

Right to object

You have the right to object to the processing of your personal data at any time for reasons that arise from your particular situation on the basis of Art. 6 Para. 1 (GDPR). Your right to objection exists for reasons arising out of your particular situation, unless we can establish compelling legitimate grounds for processing that outweigh your interests, rights and freedoms or if the processing is necessary for the assertion and exercise of or defence against legal claims (Art. 21 (1) GDPR).
If we process your personal data for direct marketing purposes, including profiling, you have the right to object to this processing. After your objection, we will stop processing.
Unless otherwise stated in this data protection declaration, please use the contact addresses given in Section 1 above to assert your abovementioned right.

Right to complain

You have the right to contact a supervisory authority of your choice in the event of complaints.

Data processing when exercising your rights

Finally, we would like to point out that we process the personal data transmitted by you when you exercise your rights in accordance with Article 7 (3) sentence 1 GDPR and Articles 15 to 22 GDPR for the purpose of implementing these rights and to provide evidence of this and, if necessary, to defend legal positions. The processing of your data to fulfil your rights as a data subject is based on the legal basis of Art. 6 (1) (c) GDPR in conjunction with Art. 15 to 22 GDPR and Section 34 (2) BDSG. Insofar as we process the personal data for the purposes of legal defense, this is also our legitimate interest, Art. 6 Para. 1 lit. f GDPR.
For the sake of completeness, we would like to point out that any personal data in connection with requests to exercise your rights to fulfil the legal documentation obligations in accordance with GDPR (and in particular to prove the timely response to your request) is stored for the duration of the regular limitation period of three years, beginning with the end of the year in which your application was finally processed by us.
The legal basis for storage is Art. 6 (1) (f) GDPR. It is in our legitimate interest to provide and document the aforementioned evidence.
This personal data will be blocked and will not be processed for other purposes, unless the processing is necessary for the establishment, exercise or defense of legal claims. This is also in our legitimate interest, according to art. 6 Para. 1 lit. f GDPR.
You are neither contractually nor legally obliged to provide your personal data, but we can refuse to fulfil your request to exercise your rights as a data subject in accordance with Art. 12 Para 2 when you do not provide the required data.

Changes to this privacy policy

We reserve the right to update this privacy policy to reflect changes in our practices and services. When we post changes to this privacy policy, we will update the date of this privacy policy. When required by applicable law, we may inform you by additional means, such as through a notification on the Services if we make material changes to how your personal information is collected, accessed or otherwise used as a result of your use of the Services or if your rights under this privacy policy are materially impacted by changes to our privacy practices. We recommend that you check this page from time to time to inform yourself of any changes in this privacy policy.

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